

Prem Chandra Yadav v. State of U.P. (tehsildar citation; EE speaking order; s.127)

Allahabad High Court · Division Bench · 7 December 2019 · Writ-C No. 40275 of 2019 · Writ-C No. 40275 of 2019 · **Writ disposed; appear before EE; stay of coercive action; s.127 if aggrieved**

HEADNOTE

A writ against a tehsildar recovery citation and alleged coercive interference with supply, without a hearing on the assessment, was disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking final order within four weeks, staying coercive action for six weeks or until disposal of the objection (vacating on default), and leaving an appeal under Section 127 of the Electricity Act, 2003 if the consumer is aggrieved by that final order.

FACTUAL SUMMARY

Prem Chandra Yadav, who ran a reverse osmosis plant, petitioned the Allahabad High Court to quash a citation-to-appear notice dated 28 November 2019 issued by the Tehsildar, Machhalishahar, District Jaunpur, and to restrain interference with electricity supply to the plant. He alleged that the electricity department was taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to Executive Engineer speaking order and Section 127 appeal

HOLDING

A writ challenging a tehsildar recovery citation and alleged coercive interference with supply is disposed of, without deciding the assessment, by directing the consumer to appear before the Executive Engineer with objections and evidence; the Engineer must pass a speaking and reasoned final order within four weeks; coercive action is stayed for six weeks or until disposal of the objection, whichever is earlier, the stay and the citation reviving automatically on default; and if the consumer is aggrieved by that final order, an appeal lies under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order by the Executive Engineer, the Court left the consumer to a Section 127 appeal if aggrieved, rather than quashing the citation or deciding the assessment in writ. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined The Court did not examine the merits of the citation, the alleged Supply Code breach, or limitation, and relegated the dispute to a speaking final order and then a Section 127 appeal. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court required the Executive Engineer to pass a final speaking order and only then opened a Section 127 appeal, rather than treating the tehsildar citation itself as the appealable order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RESPONDENTS VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005
Alleged by the petitioner; the Court directed a speaking order without deciding compliance. ¶ 1

NOT DECIDED — MERITS OF THE TEHSILDAR CITATION DATED 28.11.2019 AND THE UNDERLYING ASSESSMENT OR RECOVERY

¶ 1

SCJ-2237 · Prem Chandra Yadav v. State of U.P. (tehsildar citation; EE speaking order; s.127) · Writ-C No. 40275 of 2019 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.